



Tulsa Metropolitan Area
Planning Commission

Project Anthem - Accelerated Release of a Building Permit

Hearing Date: May 20, 2026

Prepared by: Austin Chapman

achapman@cityoftulsa.org

918-596-7597

Owner and Applicant Information

Applicant: Paul Shaw, Fortis Construction

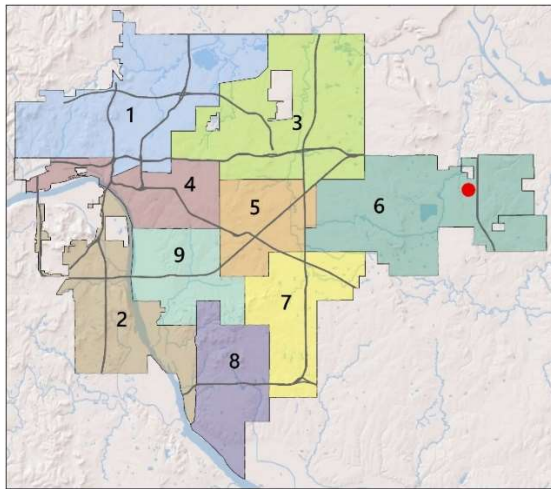
Property Owner: Atmoss LLC

Property Location

West of the Creek Turnpike between East 11th Street
South and East 21st Street South

Location within the City of Tulsa

(shown with City Council districts)



Elected Representatives

City Council: District 6, Christian Bengel

County Commission: District 1, Stan Sallee

Public Notice Required

None.

Request Summary

Applicant is requesting authorization for accelerated release of a building permit prior to the filing of the final plat for the Project Anthem subdivision plat. Public infrastructure has been guaranteed with funds in escrow as required by the Subdivision & Development Regulations.

Preliminary plat was approved on August 7, 2024. A preliminary plat extension is being requested concurrent with this application.

Tract Size: $\pm$ 339.11 acres

Zoning

Existing Zoning: IL

Existing Overlays: None

Proposed Use: Data Center

Scope of infrastructure to serve subdivision:

Public sanitary sewer, water, driveways, sidewalks, and stormwater detention will need to be approved by IDP permit. This IDP must be approved prior to plat release.

Staff Recommendation

Staff recommends approval of the authorization for the accelerated release of a building permit prior to the required subdivision plat being filed, subject to the conditions of the Subdivision and Development Regulations, finding that the application meets the criteria found in Sec. 10-110.6. A-B- and C of the Subdivision and Development Regulations. Release limited to the improvements shown in the attached conceptual improvement plan.

Exhibits

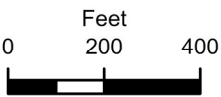
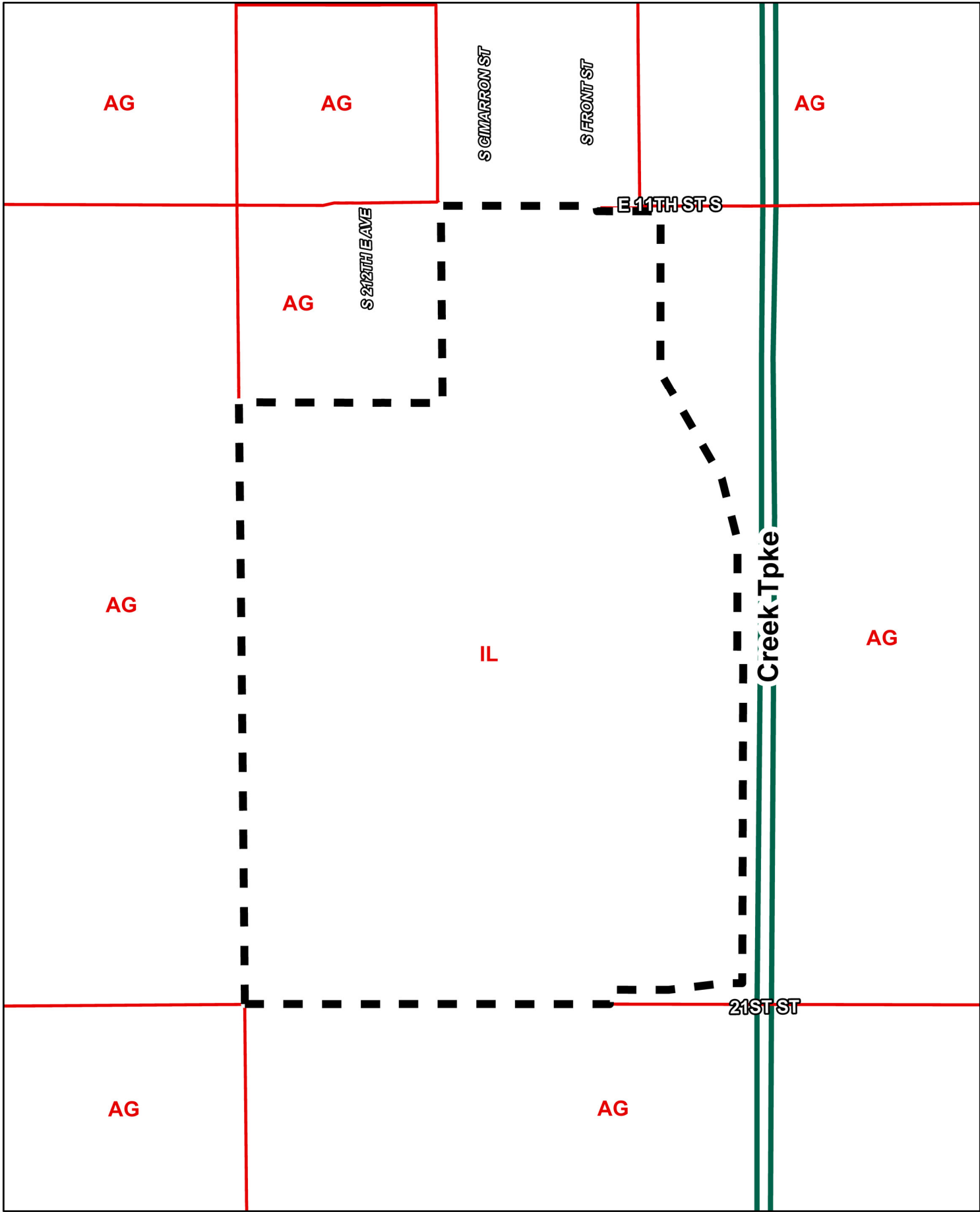
Case map

Aerial

Tulsa Comprehensive Plan Land Use Map

Project Anthem Plat

Improvements Plan

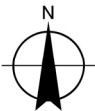


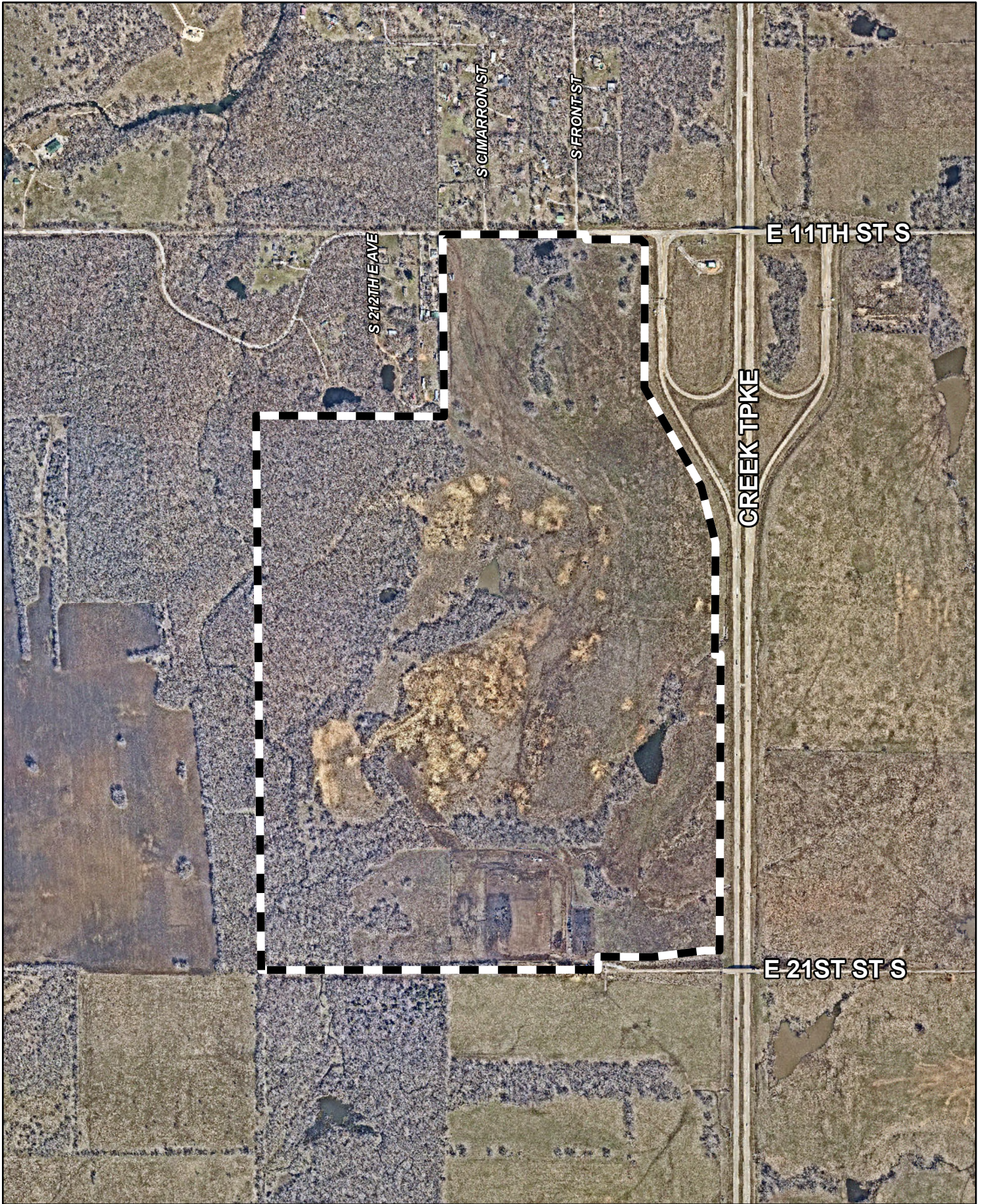
Subject
Tract

Project Anthem

Note: Graphic overlays may not precisely align with physical features on the ground.

Aerial Photo Date: 2021





0 450 900
Feet



Subject
Tract

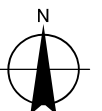
PROJECT ANTHEM

19-15 08

Note: Graphic overlays may not precisely align with physical features on the ground.

Aerial Photo Date: 2025

14.3





E 11TH ST S

S 21ST AVE

CREEK TPKE

E 21ST ST S

0 300 600
Feet



Subject
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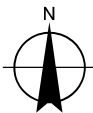
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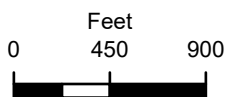
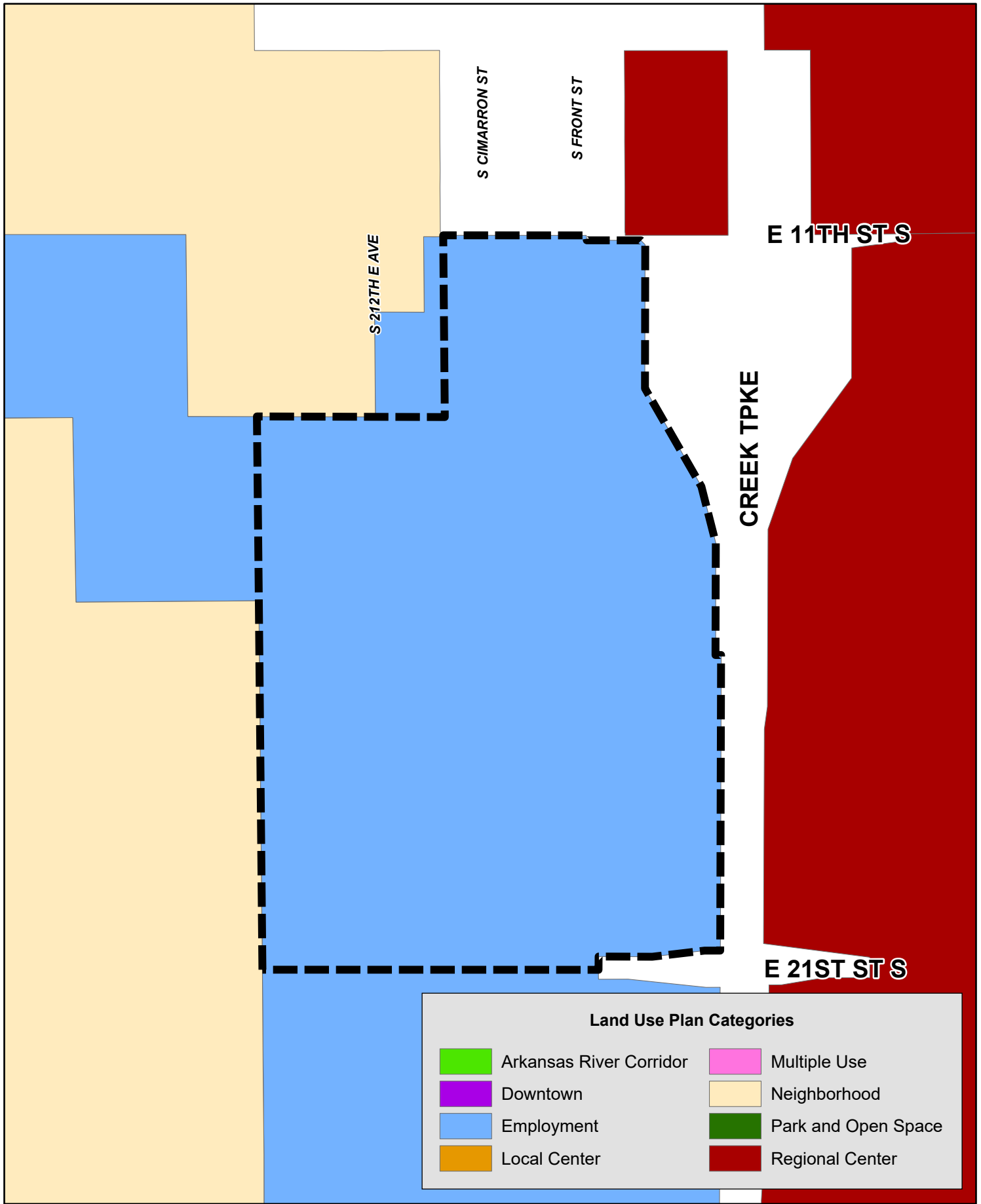
19-15 08

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14.4

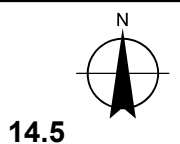




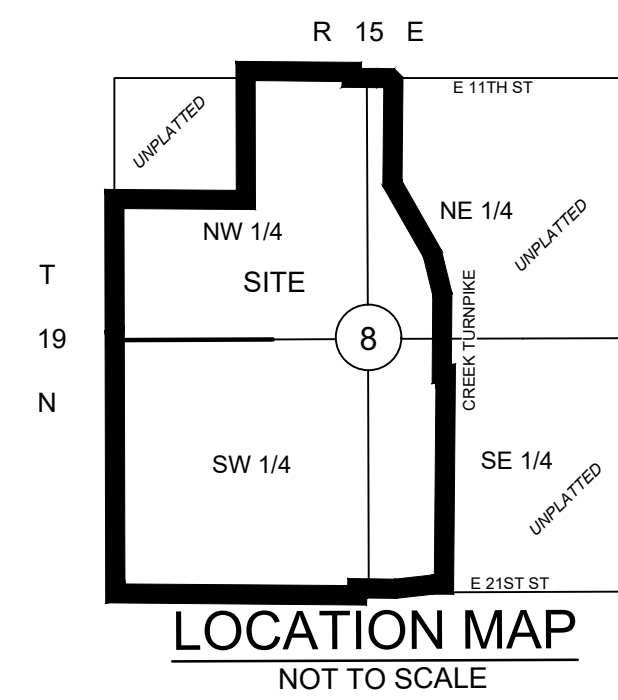
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PROJECT ANTHEM

19-15 08



FINAL PLAT FOR
PROJECT ANTHEM
PART OF SECTION 8, T-19-N, R-15-E
IN THE CITY OF TULSA, WAGONER COUNTY, STATE OF OKLAHOMA



OWNER OF RECORD:
ATMOSS, LLC, A DELAWARE
LIMITED LIABILITY COMPANY
10300 GREENBRIAR PLACE
OKLAHOMA CITY, OK 73159

FEMA 100-YEAR FLOODPLAIN:
THE PROPOSED DEVELOPMENT IS IN THE
ZONE X OF FIRM MAP 40145C0040J, AREA
DETERMINED TO BE OUTSIDE THE
500-YEAR FLOOD AND PROTECTED BY
LEVEE FROM 100-YEAR FLOOD, WITH AN
EFFECTIVE DATE OF 09.30.2016
CITY OF TULSA 405381

ZONING: IL
INDUSTRIAL, DOCUMENT # 25211

ENGINEER:
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JOHN FLAXBEARD, PE
OK C.A. NO. 2483 (PE/LS)
EXPIRES JUNE 30, 2027
7301 W. 133RD ST., SUITE # 200
OVERLAND PARK, KS 66213
913-381-1170
EMAIL: JFLAXBEARD@OLSSON.COM

SURVEYOR:
OLSSON, INC.
DARREL RAY MASON, OK PLS 1690
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EXPIRES JUNE 30, 2027
1717 S. BOULDER AVE, STE 600
TULSA, OK 74119
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LEGEND

- SECTION CORNER
MONUMENT W/ LABELED DESCRIPTION
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QUARTER LINE
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PROPOSED ROW FOR E 11 STREET DEDICATED BY THIS PLAT
PROPOSED ROAD ROW DEDICATED BY SEPARATE INSTRUMENT
- STAT. R/W

CONTROL POINT TABLE - BASED ON MODIFIED GROUND DISTANCE				
OKLAHOMA STATE PLANE COORDINATES NORTH ZONE				
POINT #	NORTHING(M)	EASTING(M)	ELEVATION(M)	DESCRIPTION
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15	425436.6829	263761.9409	706.64	1/2" REBAR
24	425641.3093	263961.1713	679.50	1/2" REBAR
100000	425728.3864	262678.4893	675.13	"X" IN TOP OF CONCRETE
100001	425022.8033	263736.0511	692.26	"X" IN TOP OF CONCRETE
CONTROL SET ON 09.21.2022				

GENERAL NOTES:

- THIS SURVEY MEETS THE REQUIREMENTS OF THE OKLAHOMA MINIMUM STANDARDS FOR THE PRACTICE OF LAND SURVEYING WHICH WAS ADOPTED BY THE BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS NOVEMBER 1, 2020.
- BASIS OF BEARINGS: MEASURED N 01°35'51" W ALONG THE WEST LINE OF SAID SW 1/4 6-T19N-R15E; OKLAHOMA COORDINATE SYSTEM OF 1983 NORTH ZONE AS ESTABLISHED BY USE OF QDOT CONTINUOUSLY OPERATING GNSS RTK NETWORK.
- ALL DISTANCES SHOWN HEREON ARE BASED ON MODIFIED GROUND DISTANCES MEASURED IN U.S. SURVEY FEET.
- FIELD WORK WAS COMPLETED ON APRIL 10, 2024.
- SEE SHEET 7 OF 7 FOR DEDICATIONS.

SUBDIVISION STATISTICS:

LAND AREA: 14,771,885 SQ. FT. OR 339.116 ACRES, MORE OR LESS
NUMBER OF BLOCKS: 1
NUMBER OF LOTS: 1
RESERVE AREAS: 1
RESERVE LAND AREA: UTILITY SERVICES,
789,989 SQ. FT. OR 18.136 ACRES, MORE OR LESS

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DETENTION EASEMENT (6)	1897415	DRAINAGE	
ACCESS EASEMENT	1897415	ACCESS	
E 21ST STREET 100' R.O.W.	1897415 & 191978	R.O.W.	
WEST PROP. 50' R.O.W.	1897415	R.O.W.	

FINAL PLAT
ENDORSEMENT OF APPROVAL

Tulsa Metropolitan Area Planning Commission

Approval Date _____

TMAPC CHAIRMAN

CITY ENGINEER

Council of the City of Tulsa, Oklahoma

CHAIR

MAYOR

ATTEST: CITY CLERK

CITY ATTORNEY

The approval of this Final Plat will expire one year from the date of City Council approval. If not filed in the Office of the County Clerk before that date.



DARREL RAY MASON, PLS NO. 1690
OK PLS NO. 1690 - EXPIRES AUGUST 31, 2026
OK C.A. NO. 2483 - EXPIRES JUNE 30, 2027

DISCLAIMER: THE ADDRESSES SHOWN ON THIS PLAT ARE FOR REFERENCE PURPOSES ONLY AND MAY NOT REFLECT THE OFFICIAL POSTAL ADDRESSES ASSIGNED BY THE LOCAL POSTAL AUTHORITY.

olsson

11600 Broadway Extension
Suite 300
Oklahoma City, OK 73114
olsson.com
TEL 405.242.6600
FAX 405.242.6601
Olsson - Survey
Oklahoma CSEA #2483

BY: _____ DATE: _____
CITY OF TULSA COMMENTS DATED 03/10/2025

DESCRIPTION: _____

REVISIONS

2026
OKLAHOMA
WAGONER COUNTY
A SUBDIVISION IN THE CITY OF TULSA

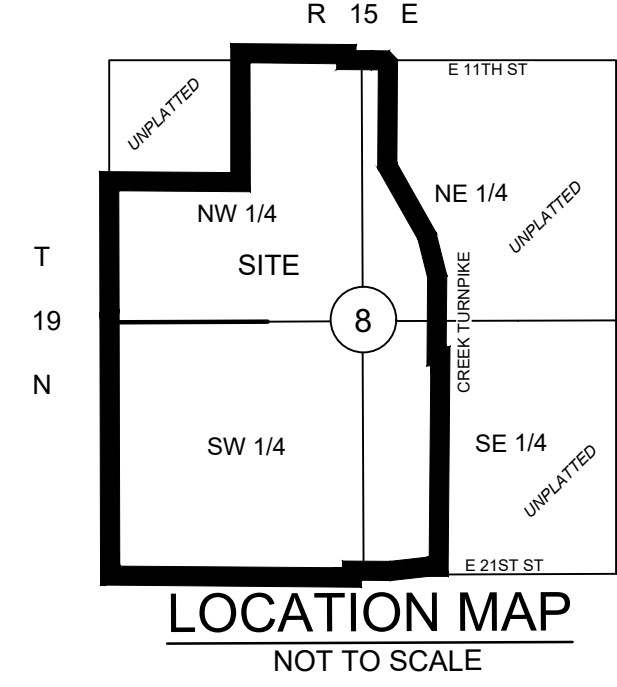
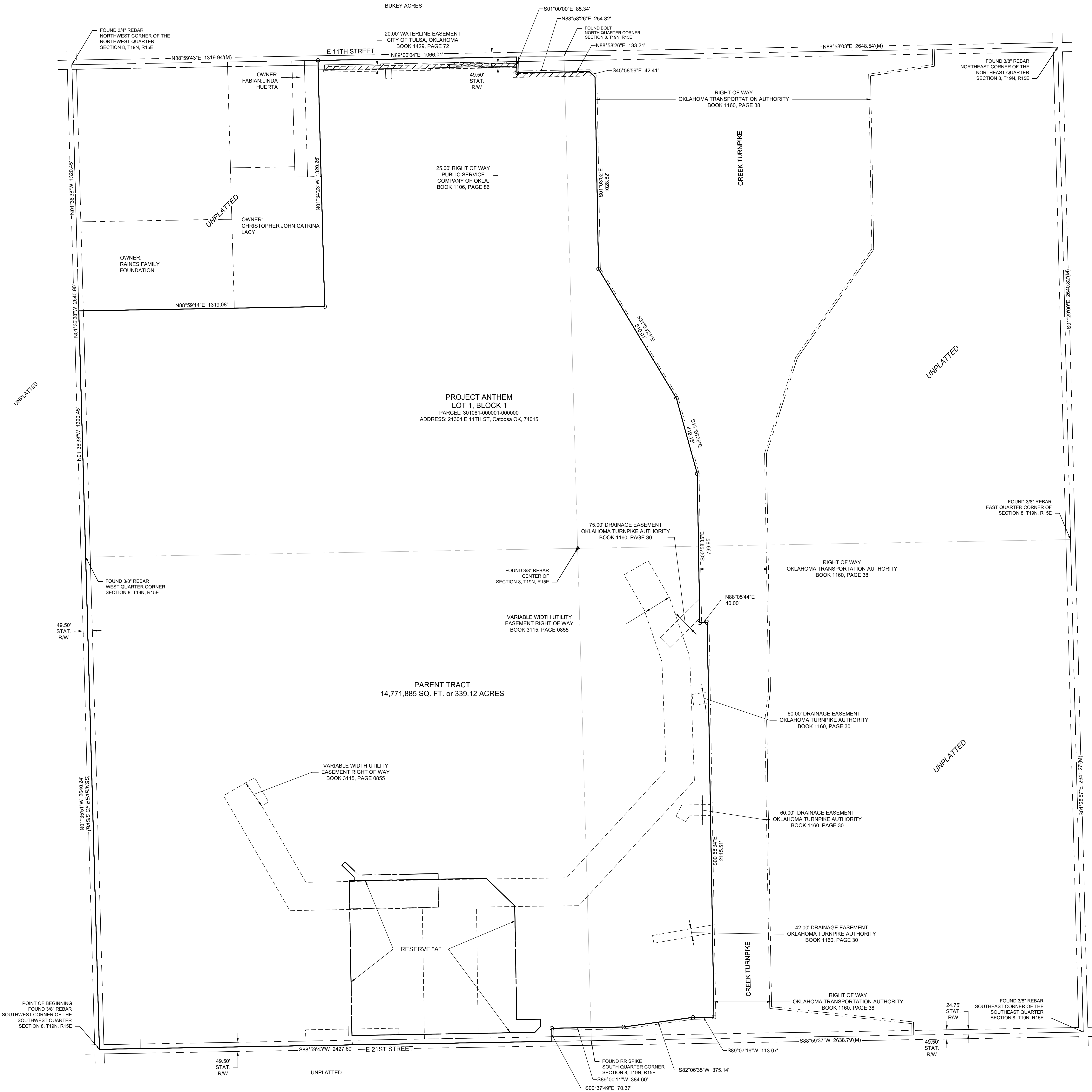
FINAL PLAT
PROJECT ANTHEM

drawn by: TLM
designed by: DRM
project no.: 022-03005
date: 03.24.2025

SHEET
1 of 7

DETAIL SHEET
EXISTING EASEMENTS

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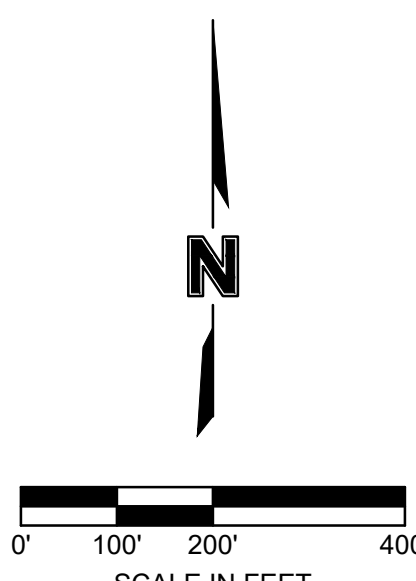
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RESERVE LAND AREA: UTILITY SERVICES,
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Oklahoma CQA #2483

BY	DATE	DESCRIPTION
CJG	03/10/2025	CITY OF TULSA COMMENTS DATED 03/10/2025

2026

OKLAHOMA

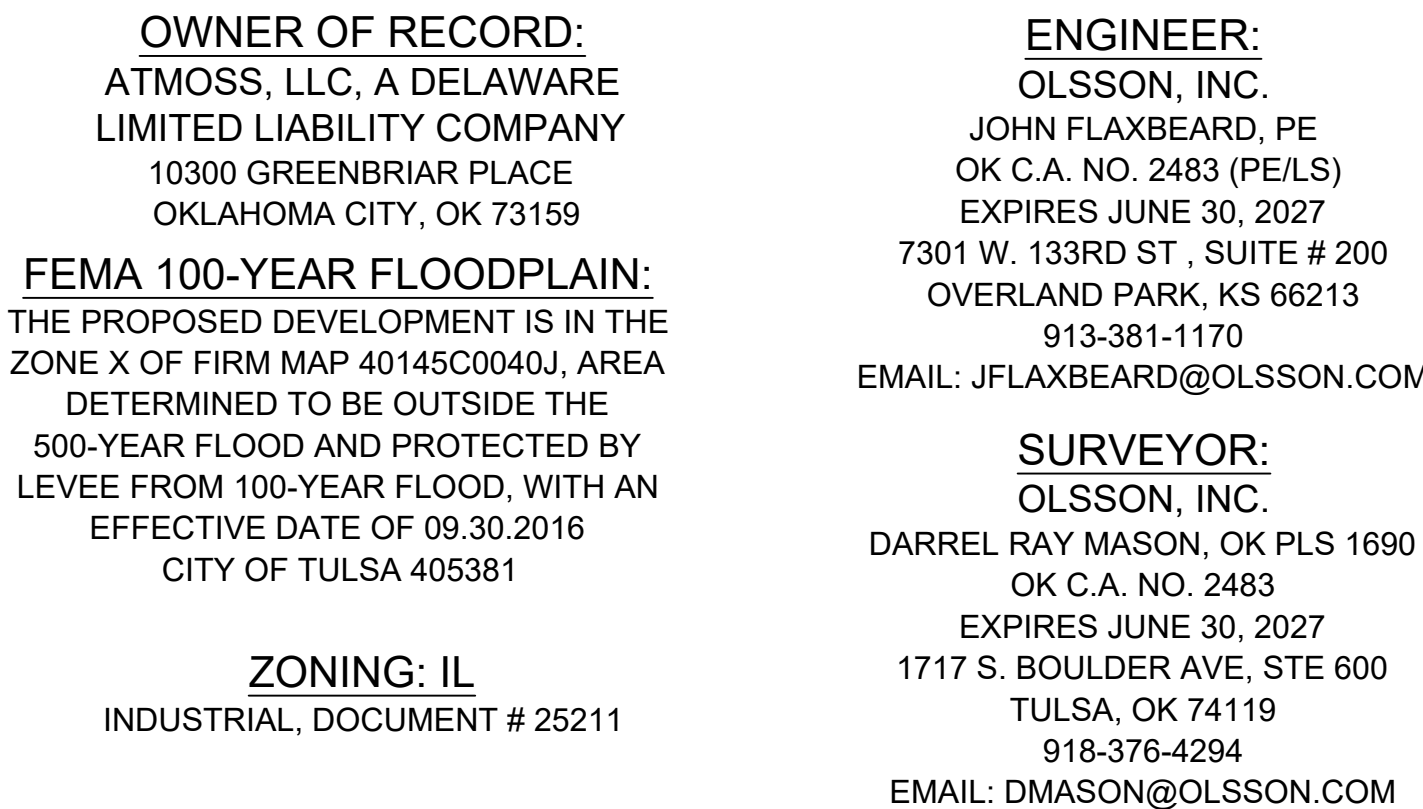
FINAL PLAT
PROJECT ANTHEM
WAGONER COUNTY

A SUBDIVISION IN THE CITY OF TULSA

drawn by: TLM
designed by: DRM
project no.: 02-20-0085
date: 03.24.2025

SHEET
2 of 7

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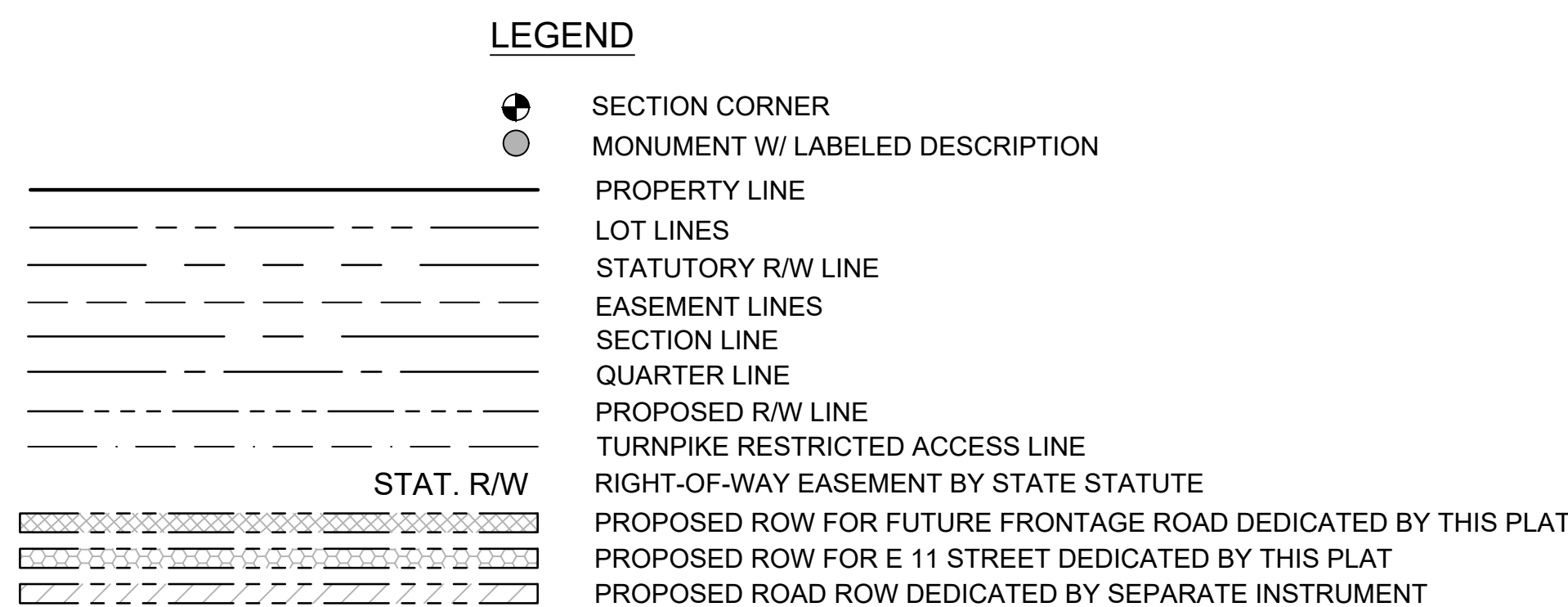


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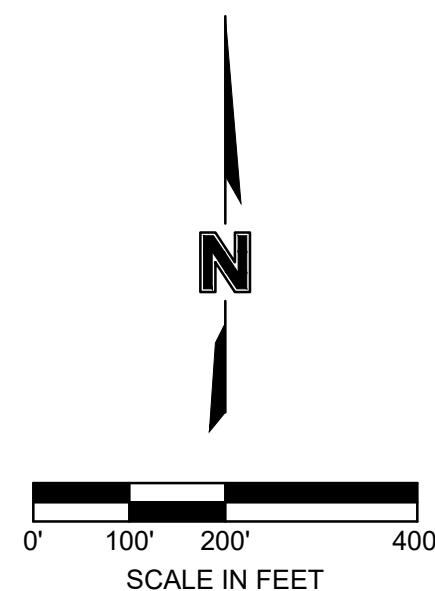
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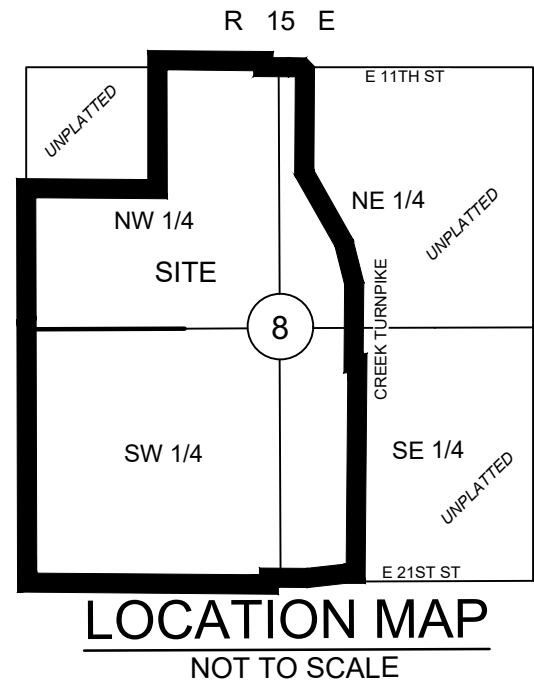
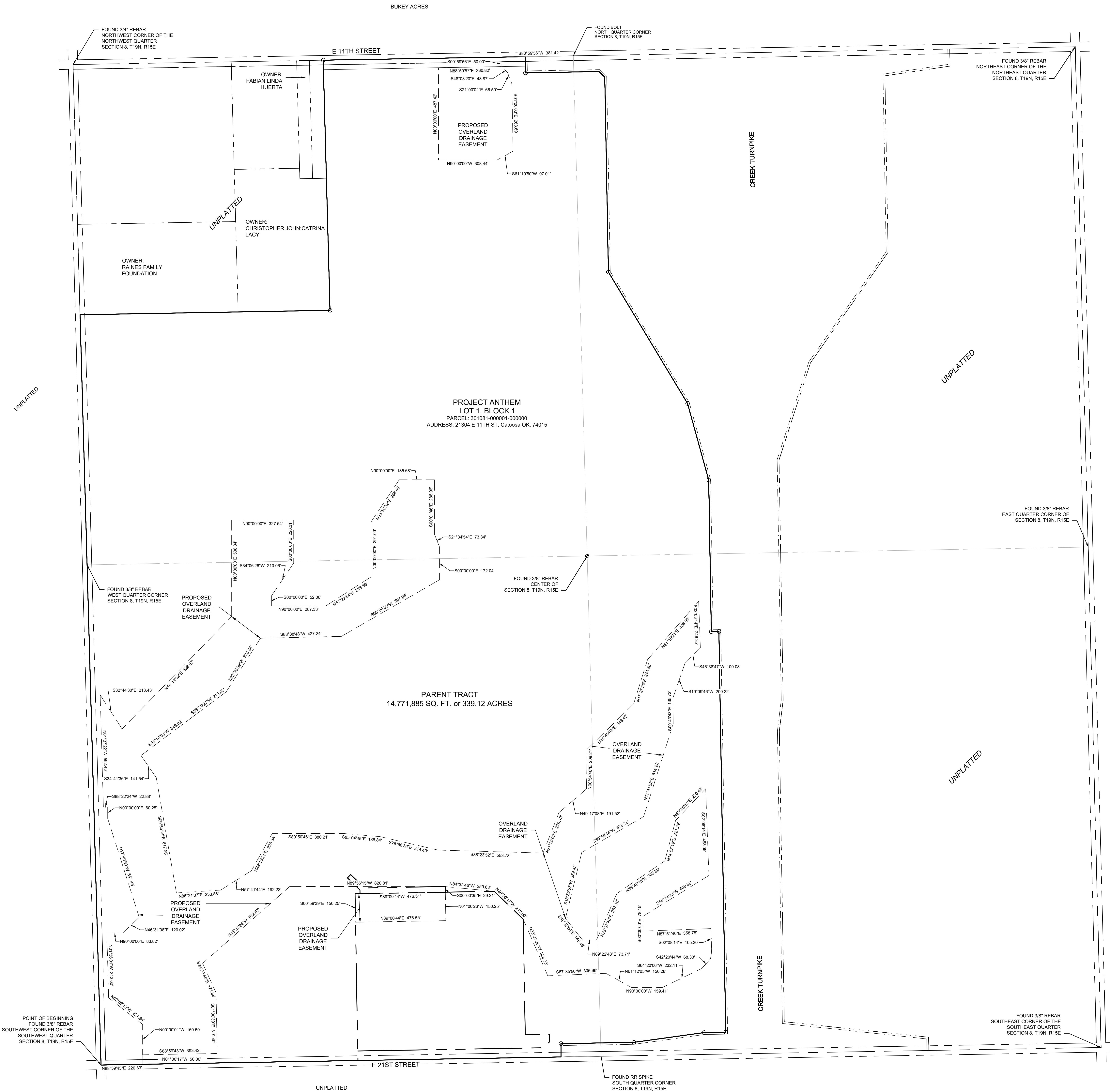


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GENERAL NOTES:

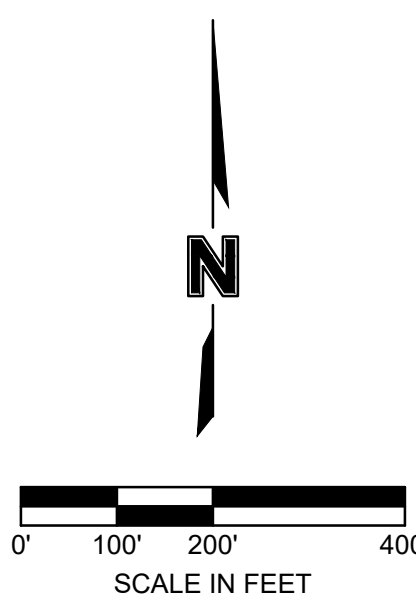
- THIS SURVEY MEETS THE REQUIREMENTS OF THE OKLAHOMA MINIMUM STANDARDS FOR THE PRACTICE OF LAND SURVEYING WHICH WAS ADOPTED BY THE BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS NOVEMBER 1, 2020.
- BASIS OF BEARINGS:** MEASURED N 01°35'51" W ALONG THE WEST LINE OF SAID SW/4 8-T19N-R15E, OKLAHOMA COORDINATE SYSTEM OF 1983 NORTH ZONE AS ESTABLISHED BY USE OF ODOT CONTINUOUSLY OPERATING GNSS RTK NETWORK.
- ALL DISTANCES SHOWN HEREON ARE BASED ON MODIFIED GROUND DISTANCES MEASURED IN U.S. SURVEY FEET.
- FIELD WORK WAS COMPLETED ON APRIL 10, 2024.
- SEE SHEET 7 OF 7 FOR DEDICATIONS.

SUBDIVISION STATISTICS:

LAND AREA: 14,771,885 SQ. FT. OR 339.116 ACRES, MORE OR LESS
NUMBER OF BLOCKS: 1
NUMBER OF LOTS: 1
RESERVE AREAS: 1
RESERVE LAND AREA: UTILITY SERVICES,
789,989 SQ. FT. OR 18.136 ACRES, MORE OR LESS

SHEET INDEX

- SHEET 1 - FINAL PLAT
- SHEET 2 - EXISTING EASEMENTS DETAIL
- SHEET 3 - PROPOSED EASEMENTS BY SEPARATE INSTRUMENT DETAIL
- SHEET 4 - PROPOSED EASEMENTS DEDICATED BY THIS FINAL PLAT DETAIL
- SHEET 5 - PROPOSED ROAD ROW DEDICATED BY SEPARATE INSTRUMENT DETAIL
- SHEET 6 - PROPOSED ROAD ROW DEDICATED BY THIS PLAT DETAIL
- SHEET 7 - FINAL PLAT DEDICATION



DARREL RAY MASON, PLS NO. 1690
OK PLS NO. 1690 - EXPIRES AUGUST 31, 2026
OK CA NO. 2483 - EXPIRES JUNE 30, 2027

DISCLAIMER: THE ADDRESSES SHOWN ON THIS PLAT ARE FOR REFERENCE PURPOSES ONLY AND MAY NOT REFLECT THE OFFICIAL POSTAL ADDRESSES ASSIGNED BY THE LOCAL POSTAL AUTHORITY.

olsson

11600 Broadway Extension
Suite 300
Oklahoma City, OK 73114
olsson.com
TEL 405.242.6600
FAX 405.242.6601
Olsson - Survey
Oklahoma CCA #2483

BY	DATE	DESCRIPTION	REVISIONS
CUG	03/10/2023	CITY OF TULSA COMMENTS DATED 03/10/2023	

2026

OKLAHOMA

FINAL PLAT
PROJECT ANTHEM
WAGONER COUNTY

A SUBDIVISION IN THE CITY OF TULSA

drawn by: TLM
designed by: DRM
project no.: 02-03-005
date: 03.24.2022

SHEET
4 of 7

14.10

FINAL PLAT FOR
PROJECT ANTHEM
PART OF SECTION 8, T-19-N, R-15-E
IN THE CITY OF TULSA, WAGONER COUNTY, STATE OF OKLAHOMA



ZONING: IL
 RIAL, DOCUMENT # 25211

	SECTION CORNER
	MONUMENT W/ LABELED DESCRIPTION
_____	PROPERTY LINE
_____	LOT LINES
_____	STATUTORY R/W LINE
_____	EASEMENT LINES
_____	SECTION LINE
_____	QUARTER LINE
_____	PROPOSED R/W LINE
_____	TURNPIKE RESTRICTED ACCESS LINE
_____	STAT. R/W
_____	RIGHT-OF-WAY EASEMENT BY STATE STATUTE
_____	PROPOSED ROW FOR FUTURE FRONTAGE ROAD DEDICATED BY THIS PLAT
_____	PROPOSED ROW FOR E 11 STREET DEDICATED BY THIS PLAT
_____	PROPOSED ROAD ROW DEDICATED BY SEPARATE INSTRUMENT

CONTROL POINT TABLE - BASED ON MODIFIED GROUND DISTANCE OKLAHOMA STATE PLANE COORDINATES NORTH ZONE				
POINT #	NORTHING(N)	EASTING(E)	ELEVATION(E)	DESCRIPTION
2	420483.0035	203990.10096	696.35	1/2" REBAR
15	420439.6529	203769.19499	706.64	1/2" REBAR
24	425641.3063	203696.17153	679.50	1/2" REBAR
100000	425726.3984	2026786.4893	675.13	"X" IN TOP OF CONCRETE
100001	425022.8033	2037395.0511	692.26	"X" IN TOP OF CONCRETE

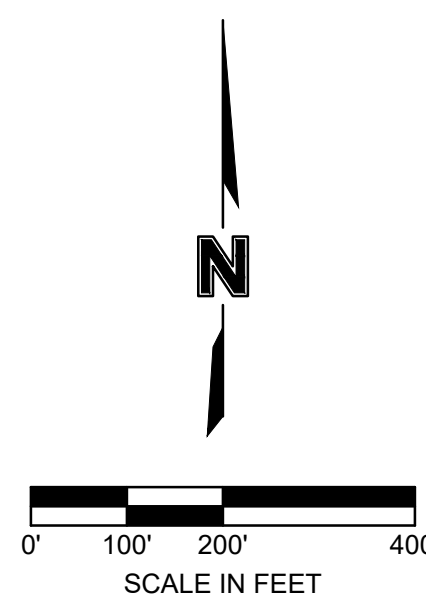
CONTROL SET ON 09.21.2021

1. THIS SURVEY MEETS THE REQUIREMENTS OF THE OKLAHOMA MINIMUM STANDARDS FOR THE PRACTICE OF LAND SURVEYING WHICH WAS ADOPTED BY THE BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS NOVEMBER 1, 2020.
2. **BASIS OF BEARINGS:** MEASURED N 01°35'51" W ALONG THE WEST LINE OF SAID SW1/4 E-119N-R15E; OKLAHOMA COORDINATE SYSTEM OF 1983 NORTH ZONE AS ESTABLISHED BY USE OF ODOT CONTINUOUSLY OPERATING GNSS RT NETWORK.
3. ALL DISTANCES SHOWN HEREON ARE BASED ON MODIFIED GROUND DISTANCES MEASURED IN U.S. SURVEY FEET.
4. FIELD WORK WAS COMPLETED ON APRIL 10, 2024.
5. SEE SHEET 7 OF 7 FOR DEDICATIONS.

LAND AREA: 14,771,885 SQ. FT. OR 339.116 ACRES, MORE OR LESS
NUMBER OF BLOCKS: 1
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SHEET 6 - PROPOSED ROAD ROW DEDICATED BY THIS PLAT DETAIL
SHEET 7 - FINAL PLAT DEDICATION

EASEMENTS BY SEPARATE INSTRUMENT			
NAME	IDP NUMBER	TYPE	DOCUMENT NO.
ACCESS EASEMENT	1897415	ACCESS	
E 21ST STREET 100' R.O.W.	1897415 & 191978	R.O.W.	
WEST PROP. 50' R.O.W.	1897415	R.O.W.	



DARREL RAY MASON, PLS NO. 1690
OK PLS NO. 1690 - EXPIRES AUGUST 31, 2026
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[illegible]

OKI AHOMA	2026
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OKI AHOMA

FINAL PLAT
PROJECT ANTHEM
WAGONER COUNTY

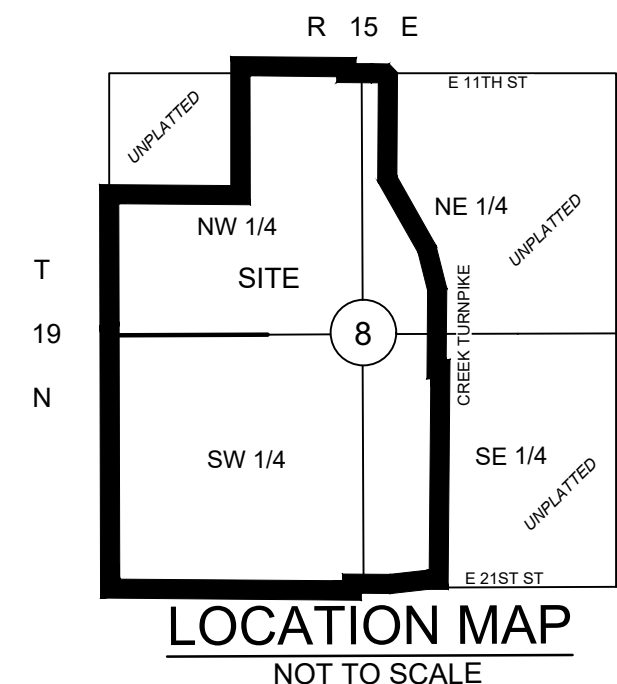
A SUBDIVISION IN THE CITY OF TILSA

drawn by: TLM
designed by: DRM
project no.: 022-02498
date: 03.24.2022

SHEET
5 OF 7

14.11

FINAL PLAT FOR
PROJECT ANTHEM
PART OF SECTION 8, T-19-N, R-15-E
IN THE CITY OF TULSA, WAGONER COUNTY, STATE OF OKLAHOMA



ZONING: IL
INDUSTRIAL, DOCUMENT # 25211

	SECTION CORNER
	MONUMENT W/ LABELED DESCRIPTION
	PROPERTY LINE
	LOT LINES
	STATUTORY R/W LINE
	EASEMENT LINES
	SECTION LINE
	QUARTER LINE
	PROPOSED R/W LINE
	TURNPIKE RESTRICTED ACCESS LINE
	RIGHT-OF-WAY EASEMENT BY STATE STATUTE
	PROPOSED ROW FOR FUTURE FRONTAGE ROAD DEDICATED BY THIS PLAT
	PROPOSED ROW FOR E 14th STREET DEDICATED BY THIS PLAT
	PROPOSED ROAD ROW DEDICATED BY SEPARATE INSTRUMENT

CONTROL POINT TABLE - BASED ON MODIFIED GROUND DISTANCE OKLAHOMA STATE PLANE COORDINATES NORTH ZONE				
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drawn by: _____ TLM
designed by: _____ DRM
project no.: _____ 022-024
date: _____ 03.24.20

SECTION II. ENFORCEMENT, DURATION, AMENDMENT AND SEVERABILITY

2.0 ENFORCEMENT

THE RESTRICTIONS HEREIN SET FORTH ARE COVENANTS TO RUN WITH THE LAND AND SHALL BE BINDING UPON THE OWNER, ITS SUCCESSORS AND ASSIGNS. WITHIN THE PROVISIONS OF SECTION I, PUBLIC EASEMENTS, ARE SET FORTH CERTAIN COVENANTS AND THE ENFORCEMENT RIGHTS PERTAINING THEREUTO AND, WHETHER OR NOT THEREIN SO STATED, THE COVENANTS WITHIN SECTION I SHALL BE BINDING UPON THE BENEFITORS OF THE EASEMENTS, THEIR SUCCESSORS, ASSIGNS, HEIRS, AND ESTATE, AND THE GRANTEES, SUCCESSORS OR ASSIGNS, SHALL VIOLATE ANY OF THE COVENANTS WITHIN SECTION I, THE SUPPLIER OF UTILITY SERVICE OR THE CITY OF TULSA, OKLAHOMA MAY BRING AN ACTION AT LAW OR IN EQUITY AGAINST THE PERSON OR PERSONS VIOLATING OR ATTEMPTING TO VIOLATE ANY SUCH COVENANT, TO PREVENT HIM OR THEM FROM SO DOING OR TO COMPEL COMPLIANCE WITH THE COVENANT OR TO RECOVER DAMAGES. IN ANY JUDICIAL ACTION BROUGHT TO ENFORCE THE COVENANTS ESTABLISHED BY THIS INSTRUMENT OF CONVEYANCE, THE DEFENSE THAT THE PARTY INITIATING THE EQUITABLE PROCEEDING HAS AN ADEQUATE REMEDY AT LAW IS HEREBY WAIVED.

2.1 DURATION

THESE RESTRICTIONS, TO THE EXTENT PERMITTED BY APPLICABLE LAW, SHALL BE PERPETUAL BUT IN ANY EVENT SHALL BE IN FORCE AND EFFECT FOR A TERM OF NOT LESS THAN THIRTY (30) YEARS FROM THE DATE OF THE RECORDING OF THIS DEED OF DEDICATION UNLESS TERMINATED OR AMENDED AS HEREINAFTER PROVIDED.

2.2 AMENDMENT

IN WITNESS WHERE OF, ATMOS, LLC HAS EXECUTED THIS INSTRUMENT THIS _____ DAY OF _____, 2026

ATMOSS, LLC
A DELAWARE LIMITED LIABILITY COMPANY

BY: _____
PAMELA GREGORSKI
PRESIDENT

STATE OF DELAWARE)
) SS.
COUNTY OF NEW CASTLE)

THIS INSTRUMENT WAS ACKNOWLEDGED BEFORE ME THIS _____ DAY OF _____, 2026, BY , PAMELA GREGORSKI, PRESIDENT OF ATMOS, LLC, A DELAWARE LIMITED LIABILITY COMPANY.

MY COMMISSION EXPIRES: _____

MY COMMISSION NUMBER:

NOTARY PUBLIC

CERTIFICATE OF SURVEY

CERTIFICATE OF SURVEY

I, DARREL RAY MASON, DO HEREBY CERTIFY THAT I AM A PROFESSIONAL LAND SURVEYOR IN THE STATE OF OKLAHOMA, AND THAT THE FINAL PLAT OF "PROJECT ANTHONY", A SUBDIVISION IN THE CITY OF TULSA, OKLAHOMA, CONSISTING OF 7 SHEETS, REPRESENTS A SURVEY MADE UNDER MY SUPERVISION ON THE _____ DAY OF _____, 2026, AND THAT THE MONUMENTS SHOWN THEREON EXIST AND THEIR POSITIONS ARE CORRECTLY SHOWN, THAT THIS SURVEY MEETS THE OKLAHOMA MINIMUM STANDARDS FOR THE PRACTICE OF LAND SURVEYORS AS ADOPTED BY THE OKLAHOMA STATE BOARD OF REGISTRATION FOR PROFESSIONAL ENGINEERS AND LAND SURVEYORS AND THAT SAID FINAL PLAT COMPLIES WITH THE REQUIREMENTS OF TITLE II SECTION 41-108 OF THE OKLAHOMA STATE STATUTES.

DARREL RAY MASON, PLS NO. 1690
OK PLS NO. 1690 - EXPIRES AUGUST 31, 2026
OK CA NO. 2483 - EXPIRES JUNE 30, 2027

[illegible]

1.9.1 RESERVE "A" – OPEN SPACE
THE USE OF RESERVE "A" SHALL BE LIMITED TO OPEN SPACE, LANDSCAPING, SCREENING FENCES, AND _____
THE RESERVE AREA SHALL BE ADMINISTERED AND MAINTAINED BY _____

BEFORE ME, THE UNDERSIGNED, A NOTARY PUBLIC IN AND FOR SAID COUNTY AND STATE ON THE _____ DAY OF _____
2026, PERSONALLY APPEARED DARREL RAY MASON TO ME KNOWN TO BE THE IDENTICAL PERSON WHO EXECUTED THE WITHIN AND
FOREGOING INSTRUMENT, AND ACKNOWLEDGED TO ME THAT HE EXECUTED THE SAME AS HIS FREE AND VOLUNTARY ACT AND DEED FOR
THE USES AND PURPOSES THEREIN SET FORTH.

IN WITNESS WHEREOF, I HEREUNTO SET MY OFFICIAL SIGNATURE AND AFFIXED MY NOTARIAL SEAL THE DAY AND YEAR LAST ABOVE WRITTEN.

MY COMMISSION EXPIRES: _____

MY COMMISSION NUMBER: _____

NOTARY PUBLIC

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